

SYNTHETIC TRAINING RECORD — FICTIONAL PARTIES, PEOPLE, AGENCIES, SYSTEMS, IDENTIFIERS, AND EVENTS — NOT A REAL FILING OR CYBERSECURITY GUIDE COUNTERFACTUAL APPELLATE BRANCH — NEVER FILED OR ENTERED ON THE ACTUAL DOCKET — ISOLATED DOCKET: SYN-CA4-26-CV-4106-CF-NEVER-OCCURRED

Never-Filed Sealed Joint Supplemental Brief

Court: United States Court of Appeals for the Fourth Circuit **Case:** Open Grid Archive v. United States Department of Energy **Isolated docket:** SYN-CA4-26-CV-4106-CF-NEVER-OCCURRED **Filed:** July 2, 2026 **Access:** Controlled counterpart; disclosure-specific authorization required

This controlled joint submission responds to the panel’s rehearing questions. It is the semantic counterpart to the public brief but uses separate sentences and organization within each corresponding page. Its fictional labels have no technical or real-world meaning.

The parties preserve the closed arithmetic: twelve responsive records comprising 200 source pages, followed by an original delivery of 146 images. Sixty-eight images had no blackout, and seventy-eight contained a redaction. Supplemental work changed treatment on eleven produced images without expanding the source collection.

The Court’s June 23 order activated conditional coverage in the February 12 motion and certificate for this ordered pair. That procedural coverage permits tender; it does not allow a view. The document remains absent from a public-only projection unless the exact authorization steps are satisfied. Joint presentation preserves each party’s position and conveys no signal about the result of rehearing.

Controlled Implementation Categories

The corrected record uses Condition-Aster and Sequence-Beryl as harmless markers for the relationship DOE says organizes an approved decision structure. Value-Cinder marks a separately analyzed guideline type when the agency supplies a prediction concerning circumvention. None of those words expresses a condition, sequence, or value.

DOE maintains that the contextual worksheet ties each marked relation to a source segment and distinguishes protected organization from nearby administration. Open Grid accepts protection for authentic implementation detail but argues that document location cannot carry the agency's burden unless position itself communicates the relation.

The panel can state the distinction safely. Independent owners, dates, headings, approvals, and revision statements remain releasable. A relationship may be retained only when the evidence shows that disclosure would expose implementation or the supported guideline, rather than merely reveal that a fictional playbook exists.

The sealed form aids structural comparison but proves nothing through its labels. Judicial reasoning must rest on the corrected evidence attributed to the authentic hypothetical analogue.

Controlled Human-Function Analysis

The limited physical-safety account assigns Role-Dovetail, Channel-Fable, Safety-Echo, and human-linked Value-Cinder to four distinct functions after individual examination. These words neither name a person nor supply a genuine contact, safeguard, or escalation fact.

DOE's causal account is functional. A real assignment might focus interference on protective work; an authentic communication category might enable misdirection; a genuine safety reference might expose the safeguard someone would seek to disrupt; and a human-linked placement might reveal when protective participation matters.

Open Grid agrees that these propositions can satisfy 7(F) when the segment actually performs the described function. It objects if a caption, archive note, or ordinary distribution statement receives the same treatment merely because related vocabulary appears nearby. An overlap with 7(E) requires a second, safety-specific reason.

The parties ask the panel to make clear that the group follows demonstrated function. It cannot substitute for the correlation that creates the expected danger.

Testing the Controlled Record

The assumed submission provides record and page references, segment boundaries, functional descriptions, exemption assignments, overlap notations, and anticipated harms. Declarants explain their review roles, and the paired samples allow comparison of structural position through invented words.

Both sides agree that this architecture must be tested rather than counted. A court should compare visible surroundings, check the declarant's foundation, reconcile the primary and supplemental accounts, and decide whether the described function matches what the segment does.

Condition-Aster, Sequence-Beryl, and Value-Cinder present implementation or guideline questions. Role-Dovetail, Safety-Echo, and Channel-Fable present separate physical-safety questions. The Court should not use a conclusion about one trio to answer the statutory elements governing the other.

DOE believes the corrected entries withstand that review. Open Grid says several disputed administrative settings deserve fuller public explanation. The sealed words do not resolve their disagreement; they simply preserve page placement for an authorized judge.

Contextual Separation Procedure

Reviewers evaluate whether a visible statement retains administrative meaning, whether adjacency discloses a relation, whether a caption survives subordinate deletion, and whether broad coordination text can stand without a human-function field. The result is recorded for the segment and any proposed residual fragment.

For example, a publication owner may remain meaningful after Condition-Aster or Sequence-Beryl is removed. A filing direction can sometimes be detached from Role-Dovetail or Channel-Fable. Where position would communicate the association, the worksheet supplies that contextual explanation rather than relying on the document's title.

DOE says this procedure reached every responsive source page, including possible cover and revision matter in the three fully withheld records. Open Grid agrees the questions are sound but asks the panel to show how it evaluated the closest cases.

Both parties reject a rule that all adjacent words are protected. They also agree that the statute does not require disclosure of isolated remnants that communicate nothing after supported deletion.

Controlled Account of the Supplemental Release

Seventeen passages were newly disclosed on eleven images already present in the production. Six images yielded two passages and five yielded one. Four decision-material images supplied six passages; two matrix images supplied three; three current-appendix images supplied five; and two prior-appendix images supplied three.

The disclosed matter covers document ownership, ordinary captions, approval and revision facts, archival handling, recordkeeping, closure language, and general coordination. Before release, reviewers separated it from Condition-Aster, Sequence-Beryl, Value-Cinder, Role-Dovetail, Safety-Echo, and Channel-Fable relationships retained under the corrected premise.

The replacement images did not become additional source pages. They changed the visible treatment of portions within the same twelve records and 200-page universe; the initial 146-image production remains the accounting baseline.

DOE treats these decisions as evidence of discrimination among functions. Open Grid treats them as proof that contextual judgment must be examined carefully. The arithmetic itself does not choose between those legal positions.

Residual Segregability Evidence

Completion depends on more than the seventeen-passage total. The final showing includes the method, the subjects released, the recorded decision for every remaining segment, and explicit consideration of proposed administrative fragments in the fully withheld records.

DOE argues that each remaining Condition-Aster, Sequence-Beryl, or Value-Cinder context would reveal a supported protected relation or leave text without informational worth after deletion. It offers parallel contextual explanations where Role-Dovetail occurs in a limited physical-safety function.

Open Grid responds that the Court should distinguish a structural caption from an ordinary descriptive heading. It accepts retention when placement genuinely communicates the relation and accepts omission of meaningless scraps, but requests public reasoning about the strongest neutral candidates.

The parties agree on the governing duty: all reasonably segregable nonexempt information must be disclosed after exempt matter is removed. The panel must find the corrected proof complete on its substance rather than infer completion from numerical production rates.

Controlled Projection and Every-Open Verification

Condition-Aster, Sequence-Beryl, Value-Cinder, Role-Dovetail, Safety-Echo, and Channel-Fable occur only within the controlled counterpart. An unauthorized session receives the independently written public brief and no location, digest, size, or existence metadata for this document.

The June 23 order's conditional fourth-pair coverage depends on the February 12 motion and certificate. Even an eligible participant must obtain a new event naming this disclosure and the exact resolved pack closure. Each attempted open then verifies the expected content-addressed path, byte size, digest, readability, and ten-page count before presenting a leased snapshot.

Revocation removes the controlled row from the session and immediately returns the public-only projection. A grant for an earlier opening, response, or reply pair cannot be reused here. Failed verification reveals no fallback path and exposes no bytes.

These controls implement the Court's legal findings; they do not supply them. Passage-specific necessity, alternatives, scope, and duration must exist before the access mechanism operates.

Separate Positions on Rehearing

DOE seeks a revised opinion that preserves full affirmance. It submits that Condition-Aster, Sequence-Beryl, and Value-Cinder contexts satisfy the limited 7(E) analysis, while retained Role-Dovetail, Safety-Echo, and Channel-Fable contexts satisfy the independently supported 7(F) account.

DOE also contends that every useful administrative portion has been separated and that controlled passages receive independent access findings. It asks the panel to clarify the path from evidence to conclusion without changing the four-target result.

Open Grid agrees that authentic implementation relations and properly correlated safety functions may remain protected. It argues that the Court should examine contested contexts and, if an explanation is missing, order only the relief necessary to cure that gap. It does not seek an inert label's hypothetical real counterpart.

The parties jointly recognize that exemption, segregation, and judicial access are separate decisions. They do not assume whether the panel will adhere to or alter its prior result after rehearing.

Controlled Attestation

This ten-page counterpart addresses the same page-level subjects as the public joint submission without copying its prose. It contains only six invented labels and abstract legal analysis. It neither adds to the search record nor changes production arithmetic.

The document's restricted status rests on the conditional procedure activated by the June 23 order and on any required disclosure-specific grant. Mere listing in the certificate does not make the brief visible to an eligible user, and no earlier grant transfers to this pair.

Tamsin Roe and Leo Marr sign for Open Grid; Corin Pell signs for DOE. They certify service by the controlled fictional process on July 2, 2026 and confirm that the brief includes no genuine threshold, assignment, channel, safeguard, identity, instruction, credential, system fact, or vulnerability.

The submission preserves each party's position and predicts no rehearing outcome. It was never lodged on the actual docket and carries no effect outside this isolated exercise.